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Provision of July 18, 2023
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter “Regulation”);

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, No. 196), as
amended by legislative decree August 10, 2018, No. 101, containing
provisions for the adaptation of the national
legislation to the aforementioned Regulation (hereinafter
“Code”);

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Regulation of
the Guarantor No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY

With the complaint of January 9, 2023, submitted to
this Authority pursuant to Article 77 of the
Regulation, Ms. XX complained about the receipt,
“over the years,” and most recently on December 1, 2022,
of promotional calls on behalf of Maximum
International Corp. S.r.l. (hereinafter also
“Maximum” or “Company”) in the absence of specific
consent for marketing and even after the opposition
expressed during the unwanted contacts.

Furthermore, the complainant stated that she had not
received a response to the request for the exercise of
the rights of access and deletion of personal data
(pursuant to Articles 15 and 17 of the Regulation) made
on December 2, 2022.

In response to the request for information dated January 19,
2023, made by the Authority pursuant to Article 157 of the Code
(protocol No. 08991/23), the Company, in a communication dated
February 16, 2023, stated that it does not “sell directly to individuals” and
that it relies, for the execution of promotional activities, on

“independent concession agencies, each with its own legal nature,” and therefore could not “respond regarding the commercial organization of each of them.”

On April 7, 2023, the complainant reported receiving another unwanted promotional call on behalf of the Company.

2. THE CONTESTATION OF VIOLATIONS

By note dated April 19, 2023 (protocol No. 65417/23), the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures under Article 58, paragraph 2, of the Regulation, recognizing, first and foremost, the role of Maximum as the data controller, with consequent attribution of responsibility for the alleged violations of the following provisions of the Regulation:

2.1. Articles 5, paragraph 2, 24, and 25 of the Regulation for failing to adopt adequate organizational measures aimed at keeping track of processing activities within the supply chain and demonstrating compliance with the rules;

2.2. Articles 12, paragraphs 2 and 3, 15, 17, and 21, paragraph 2, of the Regulation for failing to respond to the request for the exercise of rights made by the data subject and for not having timely recorded the related opposition;

2.3. Articles 6, paragraph 1, letter a), 7 of the Regulation and Article 130 of the Code, for having made promotional calls without the informed consent of the data subject;

2.4. Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a) and 7 of the Regulation for having processed personal data collected through the website - <https://www.maximumsrl.com/> - in the absence of an appropriate legal basis; in this regard, the Authority has noted that the procedure for finalizing the request for online assistance/advice through the data collection form found at the link <https://www.maximumsrl.com/contatti> is conditional upon obtaining consent for the processing of personal data for direct marketing and profiling purposes. In other words, users are prevented from accessing the assistance/advice services offered by the Company without first having mandatorily accepted the processing of data for various marketing and profiling purposes, thus resulting in a coercion of the will of the data subject;

2.5. Article 25, paragraph 1, of the Regulation for the inadequate setting of processing due to the lack of correspondence between activities described in the privacy notice (sending of newsletters) and consents to be obtained (in this case not requested by the Company). In particular, while proposing the use of data acquired during

registration on the website (<https://www.maximumsrl.com/>) for the sending of newsletters (as emerges from the privacy notice available at the link <https://www.iubenda.com/privacy-policy/86441273>), no specific consent for this purpose was found, nor was the legal basis justifying its pursuit clarified, generating reasonable doubt as to what the actual processing carried out by Maximum is and what means have been used for this purpose.

3. DEFENSIVE OBSERVATIONS AND EVALUATIONS OF THE AUTHORITY

3.1. Defensive memorandum

The Company, in exercising its right of defense, submitted a memorandum dated May 18, 2023, in which it requested the dismissal of the proceedings initiated against it as it is unrelated to the alleged conduct. In particular, it reiterated that it does not hold the personal data of the complainant, nor has it contacted her for marketing purposes. Furthermore, the calling number used for this purpose was not found to be "owned" by the Company, which "does not have authorized intermediaries calling on behalf of Maximum." In this regard, it specified that "many Call Centers improperly use [...] the Maximum brand" to then sell different products. The Company operates in the sale of its products exclusively to private companies "completely independent [...] with a data collection and registries of which [the] Maximum is [...] unrelated." Therefore, the Company cannot be attributed the role of data controller, nor can it exercise any "directive and sanctioning" power against companies that operate privately with the aim of selling Maximum products. The opposition expressed by the complainant was also incorrectly directed against the Company, as the latter is not responsible for the treatments in question.

Regarding the website, the Company represented that it collects personal data through an online form solely to respond to reports and complaints related to technical-functional issues of Maximum brand devices and not for commercial activities. In support of this, in its response to the Authority, an excerpt of the email sent by the DPO of Maximum (with the relevant copy attached) was reported regarding the Company's data processing policy, from which it emerges that the Company "does not carry out any newsletter activities and that the data collected is promptly deleted for requests submitted beyond 90 days." Finally, "from a preliminary check, there are 22 records from the last 90 days from the website www.maximumsrl.com of an assistive nature."

3.2. Legal Assessments

With reference to the factual profiles highlighted above, also based on the statements of the Company, for which the declarant is responsible pursuant to Article 168 of the Code, the following legal assessments are made.

3.2.1. On Ownership and Accountability

First of all, the ownership of the processing in question must be attributed to Maximum and, consequently, the responsibility for violations regarding the protection of personal data. While claiming its estrangement from the alleged processing, there is no doubt that the calls received by the complainant were made in the name and interest of the Company, to the point of generating in the interested party the belief that she was contacted directly by Maximum. In fact, the complainant initially approached the Company based on this legitimate reliance, thus excluding any potential liability charges against other parties (see, in this regard, provision of June 15, 2011, web doc. no. 1821257). The same third-party companies, linked by a commercial relationship with the Company, even if "independent" and "with their own legal nature," would fall within a single overall economic scheme aimed at increasing the sale of Maximum products and services, thus not relieving the latter from responsibilities related to the processing of personal data. It cannot be excluded that from this sales activity, parallel and external to Maximum and seemingly characterized by a certain systematicity, advantages may derive for the latter in terms of brand promotion, resulting in the activation of services or the subscription of new contracts. Furthermore, the use of calling numbers not attributable to the

Company does not allow overcoming the described critical issues since, as repeatedly stated by the Authority, calls not coming from the official sales force of the company or for which it is not possible to trace the identification of the holder could be made, as often happens, disguising the calling number through the adoption of caller ID masking techniques, such as phone spoofing.

In light of the above, the Company, as the data controller, acknowledged the lack of adequate technical and organizational measures, as regulated by Article 24 of the Regulation, particularly regarding the inability to effectively control the supply chain of partners conducting promotional activities on its behalf. Moreover, there are no initiatives or corrective actions in this regard from the Company even after the request for information from the Office and not even after the initiation of the proceedings, as the complainant reported receiving further unwanted calls, occurring "weekly," for the promotion of Maximum services (as indicated in the note of June 26, 2023). Nor, from the context presented, is there evidence of the adoption of suitable and effective concrete initiatives against any abusive parties that would fuel the illegal market through the improper use of the name Maximum (reports to the competent Authorities, or the adoption of commendable technical and organizational measures).

It is therefore deemed necessary to confirm the violation of Articles 5, paragraph 2, 24, and 25 of the Regulation, which frame the responsibilities of the data controller in a perspective of necessary enhancement of the principle of accountability aimed at demonstrating compliance with the rules on the protection of personal data.

3.2.2. On the exercise of rights

As described in point 1 of this provision, promotional calls in the interest of Maximum would have continued even after the opposition expressed by the complainant during the contested contacts. Therefore, the Company not only appears to have failed to timely record such opposition but also does not seem to have responded to the request for the exercise of rights under Articles 15 and 17 of the Regulation within the terms provided by Article 12, paragraph 3, of the same. The Company responded, albeit evasively, only after being prompted to do so by the Authority with the request for information dated January 19, 2023, and, in the memorandum of May 18, 2023, considered that the complainant's opposition had been erroneously raised against it, not considering itself responsible for the contested contacts.

It thus emerges a conduct inconsistent with the obligation of the data controller to facilitate, with appropriate measures, the exercise of rights provided for by the legislation on personal data protection and to satisfy, without delay, the related requests, including the right to object which can be raised "at any time" (see provision no. 431 of December 15, 2022, web document no. 9856345), integrating the violation of Article 12 paragraphs 2 and 3, as well as Articles 15, 17, and 21, paragraph 2, of the Regulation.

3.2.3. On consent

The complainant stated that they never provided their consent to receive promotional communications from the Company and that they requested multiple times the deletion of their personal data (also during the contested calls as described above). In this regard, it should be highlighted that dissent or opposition to further processing expressed during the unwanted call always prevails over any consent originally given.

It is instead clear that the calls made after the complainant's denial lacked the legal basis of consent, nor did the Company ever mention the existence of an original consent that would authorize at least the first promotional call.

Therefore, as the acquisition of suitable consent from the data subject to receive promotional calls has not been proven, it is deemed necessary to confirm the violation of Articles 6, paragraph 1, letter a) and 7 of the Regulation and Article 130 of the Code.

3.2.4. On the processing of personal data via online form in the absence of a suitable legal basis

The circumstance represented by the Company of not processing personal data collected via online form for commercial purposes is not confirmed by the email that the DPO of Maximum sent in support of the defensive arguments. In the aforementioned memorandum, the Company evaded some

information reported in the cited email (of which a copy was attached) that would reveal a different picture than that outlined by Maximum. In fact, it is noted that the "22 records from the last 90 days from the website www.maximumsrl.com [have] an assistive and promotional nature" and that they are used "only in case of contacts that explicitly left consent [...] specific for marketing purposes."

Furthermore, "the company has adopted measures to centralize consents for marketing purposes, from contacts coming from the official website [...] in order to ensure the validity of consents and ensure that all marketing activities comply with privacy regulations."

It follows that the personal data collected via the website have also been processed for promotional purposes, as confirmed in the cited email, with prior consent from the data subjects. However, the acquisition of consent for marketing and profiling has proven to be mandatory and a necessary condition to proceed with the request for assistance/advice via online form, inevitably undermining the free will of the data subjects.

Therefore, emerging from the above observations, the absence of suitable consent is evident, not only in relation to the case of the complaint but in the overall processing carried out by Maximum, and it is deemed necessary to confirm the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a) and 7 of the Regulation. Finally, the circumstance described by the Company of not carrying out "any newsletter activity" does not allow overcoming the issues referred to in point 2.5, to which complete reference is made, confirming a disconnect between the formal plan (purposes pursued described in the privacy notice, including the sending of newsletters) and the factual one of the processing activities (the concrete activities carried out by the Company). This denotes an incorrect and inadequate setup of the processing in question, with the consequent violation of Article 25, paragraph 1, of the Regulation.

4. CONCLUSIONS

Based on the above, the responsibility of Maximum is deemed established regarding the following violations of the Regulation:

- Article 5, paragraphs 1, letter a) and 2;
- Article 6;
- Article 7;
- Article 12, paragraphs 2 and 3;
- Article 15;
- Article 17;
- Article 21, paragraph 2;
- Article 24;
- Article 25;

as well as Article 130 of the Code.

Having established the unlawfulness of the above-described conduct of the Company, it is necessary:

- pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibiting the processing of personal data collected through the website in the absence of suitable consent from the data subjects for marketing and profiling activities, pursuant to Articles 6, 7, and 12 of the Regulation, as well as Article 130 of the Code;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, ordering Maximum to promptly delete said data, except for those that must be retained for compliance with a legal obligation or for the defense of a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;
- in the event that the Company intends to continue the aforementioned processing activities, prescribing, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to implement all necessary measures to ensure that they comply with the provisions regarding the protection of personal data, namely, among others:
 - a) providing data subjects with suitable information pursuant to Articles 12 and 13 of the Regulation, regarding the individual processing of personal data;
 - b) identifying a suitable legal basis for the processing in question, which, at present, appears to be

realizable through the acquisition of informed, free, specific, documented, and unequivocal consent for each of the specific purposes pursued (Articles 6 and 7 of the Regulation);

c) implementing all necessary organizational measures to facilitate the exercise of the rights provided for by the regulations on the protection of personal data and to satisfy, without unjustified delay, the related requests, including the right to object that can be raised "at any time" by the data subject (Article 21, paragraph 2, of the Regulation);

d) suitable procedures aimed at tracking processing activities within the supply chain and demonstrating compliance with the rules on the protection of personal data, particularly with regard to those applicable to the sending of commercial communications (Articles 6, 7, 13, 14 of the Regulation and Article 130 of the Code);

- with regard to the processing already carried out, it is believed that the conditions for the application of an administrative monetary sanction exist pursuant to Articles 58, paragraph 2, letter i) and 83, paragraphs 4 and 5, of the Regulation.

5. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE MONETARY SANCTION

The confirmed violations above necessitate the adoption of an order for injunction, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Maximum of the administrative monetary sanction provided for by Article 83, paragraphs 4 and 5, of the Regulation. However, since various provisions of the Regulation and the Code have been violated in relation to connected processing carried out by the Company for marketing purposes, it is believed that Article 83, paragraph 3, of the Regulation is applicable, according to which, "if, in relation to the same processing or connected processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation," thus absorbing the less serious violations. Specifically, the aforementioned violations - also concerning the exercise of the rights of the data subjects - fall under, pursuant to Article 83, paragraph 3, of the same Regulation, the scope of the most serious violation, resulting in the application of the sanction provided for in Article 83, paragraph 5, of the Regulation.

For the determination of the amount of the sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1), it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

As circumstances to be considered in this case, the following aggravating factors must be taken into account:

1. the severity of the violations detected, particularly with reference to the inadequate management of the data subject's right to object, confirmed by the receipt by the latter of numerous further unwanted phone calls promoting Maximum's services, even after the initiation of proceedings by the Authority, which add to the contacts recorded over the years by the complainant (Article 83, paragraph 2, letter a);
2. the subjective dimension of the conduct, to be considered seriously negligent, particularly with reference to the inadequacy of control over the processing supply chain (Article 83, paragraph 2, letters b and d);
3. the discrepancy of the Company's conduct compared to the consistent regulatory activity of the Guarantor regarding telemarketing, particularly with reference to information and consent, data retention, and management of the ownership of processing (Article 83, paragraph 2, letter k).

As mitigating factors, it is deemed necessary to consider:

1. the nature of the data processed, which is of a common type (Article 83, paragraph 2, letters a, g);
2. the absence of previous proceedings initiated against the Company (Article 83, paragraph 2, letter e);
3. the degree of cooperation in the interaction with the supervisory Authority that made it easier to carry out the investigation activities (Article 83, paragraph 2, letter f);
4. the overall assessment of the Company's economic capacity, taking into account the latest available corporate turnover (Article 83, paragraph 2, letter k).

Based on the overall elements indicated above,
following order.

In application of the aforementioned principles of effectiveness, proportionality, and deterrence as per Article 83, paragraph 1, of the Regulation, taking into account the necessary balancing between the rights of the data subjects and the freedom of enterprise, also in order to limit the economic impact of the sanction on the organizational, functional, and employment needs of the Company, it is deemed appropriate to apply to Maximum – also considering other similar cases – the administrative sanction of a payment of five thousand euros (€5,000.00), equal to 0.025% of the maximum penalty.

In this case, it is also considered appropriate to apply the ancillary sanction of publication on the website of the Authority of this provision, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Authority No. 1/2019, taking into account the subject matter of the investigation, namely the phenomenon of unwanted marketing, with respect to which this Authority has adopted numerous measures both of a general nature and directed at specific data controllers, and on which there is heightened attention from users.

It is reminded that pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years, and that, in case of non-compliance with the same order, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied in an administrative context.

Finally, the prerequisites referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, for the annotation of the violations detected herein in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, are present.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares unlawful, in the terms set out in the reasoning, the processing carried out by Maximum International Corp. S.r.l., with registered office at Contrada Zachia, 90038 Zachia (Palermo), VAT number 04434710820, and consequently:

a) pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibits the processing of personal data collected through the website in the absence of appropriate consent from the data subjects for marketing and profiling activities, pursuant to Articles 6, 7, and 12 of the Regulation, as well as Article 130 of the Code;

b) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders Maximum International Corp. S.r.l. to promptly delete said data, except for those that must be retained for compliance with a legal obligation or for the defense of a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;

c) in the event that the Company intends to continue the aforementioned processing activities, it prescribes, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to implement all necessary measures to ensure that they comply with the provisions on the protection of personal data, namely, among others:

- to provide data subjects with an appropriate notice pursuant to Articles 12 and 13 of the Regulation, regarding the individual processing of personal data;
- to identify an appropriate legal basis for the processing in question which, at present, appears to be realizable through the acquisition of informed, free, specific, documented, and unequivocal consent for each of the specific purposes pursued (Articles 6 and 7 of the Regulation);
- to implement every organizational measure necessary to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject (Article 21, paragraph 2, of the Regulation);
- to adopt appropriate procedures aimed at tracking processing activities within the supply chain and

demonstrating compliance with the rules on the protection of personal data, with particular reference to those applicable to the sending of commercial communications (Articles 6, 7, 13, 14 of the Regulation and Article 130 of the Code);

d) pursuant to Article 157 of the Code, orders the Company to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Maximum International Corp. S.r.l., represented by its legal representative, to pay the sum of five thousand euros (€5,000.00), as an administrative monetary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of five thousand euros (€5,000.00) according to the methods indicated in the attachment, within 30 days from the notification of the order.

****Present Provision****, under penalty of adopting the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

****ORDERS****

as an accessory sanction, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Guarantor No. 1/2019, the publication on the Guarantor's website of this provision and, pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, July 18, 2023

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Cerrina Feroni

****THE SECRETARY GENERAL ****

Mattei